

24SMCV03162 24SMCV03162

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-21

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 21, 2026

CASE NUMBER

24SMCV03162

MOTION

Motion to Strike Portions of Complaint

MOVING PARTY

Defendant Timothy Meagher

OPPOSING PARTY

none

MOTION

This case arises from a vehicle collision. On June 28, 2024, Plaintiff Justin Daney ("Plaintiff") filed suit against Defendant Timothy Meagher (Defendant) alleging a single cause of action for negligence.

Plaintiff passed away intestate on October 11, 2025, and is survived by his two minor children as his successors in interest. On March 18, 2026, the Court granted Plaintiff's motion to substitute Hope Daney, by and through her Guardian ad Litem, Haley Dare Sullivan, as Plaintiff's successor-in-interest.

Defendant now moves to strike allegations of general damages on the grounds that pain and suffering is no longer available now that this is a survival action. The motion is unopposed.

REQUEST FOR JUDICIAL NOTICE

Defendant requests the Court to take judicial notice of all documents filed in this matter, including Plaintiff's Motion For Leave To Substitute Party Or, In The Alternative, Leave To File An Amended Complaint" filed on February 11, 2026.

Judicial notice may be taken of records of any court in this state. (Evid. Code, § 452, subd. (d)(1).)

Because all documents filed in this matter are part of the Court's record for this case, the Court may take judicial notice of them. (Ibid.) However, "while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof." (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Accordingly, the Court takes judicial notice of the existence, filing, and legal consequences of all documents filed in this matter as court records, but not the absolute truth of the allegations or other hearsay statements contained therein.

ANALYSIS

1.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

This action became a survival action on March 18, 2026, upon the Court's granting of Plaintiff's motion to substitute Hope as Plaintiff's successor in interest.

Damages recoverable in a survival action commenced after January 1, 2026 "are limited to the loss or damage that the decedent sustained or incurred before death, including any penalties or punitive or exemplary damages that the decedent would have been entitled to recover had the decedent lived, and do not include damages for pain, suffering, or disfigurement." (Code Civ. Proc., § 377.34, subds. (a)-(b).)

Thus, Defendant moves to strike Plaintiff's request for general damages for pain and suffering, on the ground that they are irrelevant now that the instant litigation is a survival action.

2.

LEAVE TO AMEND

A plaintiff has the burden of showing in what manner the complaint could be

amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, *supra*, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that “if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend.” (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiff

has failed to meet this burden as Plaintiff has not opposed the motion and therefore does not address whether leave should be granted if the motion to strike is granted.

CONCLUSION AND ORDER

For the reasons stated, the Court grants Defendant’s unopposed motion to strike the request for pain and suffering general damages from the Complaint as irrelevant without leave to amend.

Defendant shall provide notice of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: July 21, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court